

English for Lawyers 2

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Revision II



Complete the sentences

1. US Congress consists of the H_____ of R_____, which has p_____ representation, and the S_____, which has e_____ representation, i.e. two s_____ per state.
2. The President of the USA is elected in an indirect electoral system. The people vote in the p _____ vote and choose e_____, who in turn vote for the candidates. This vote is called the e_____ vote, and the body that casts it called the E_____ C_____.
3. The US federal court system consists of: d_____ courts, which are _____-_____ courts, and the c_____ courts, which have a_____ jurisdiction, and finally the Supreme Court.

Complete the sentences II

1. US Congress consists of the HOUSE of REPRESENTATIVES, which has PROPORTIONAL representation, and the SENATE, which has EQUAL representation, i.e. two SENATORS per state.
2. The President of the USA is elected in an indirect electoral system. The people vote in the POPULAR vote and choose ELECTORS, who in turn vote for the candidates. This vote is called the ELECTORAL vote, and the body that casts it is called the ELECTORAL COLLEGE.
3. The US federal court system consists of: DISTRICT courts, which are FIRST-INSTANCE courts, and the CIRCUIT courts, which have APPELLATE jurisdiction, and finally the Supreme Court.

concurrent – press – interpret – delegate – accuse – impeachment – bear review – violate – levy – enforce – activism – office – assembly – reserve

1. Both levels of government in the US have the power to taxes. Powers which are shared by both levels of government are referred to as powers.
2. According to the Tenth Amendment, all powers not to the federal government are for the states, which can pass, and laws, as long as they don't the Constitution.
3. A US president can be removed from by
4. The Bill of Rights lists civil rights and freedoms such as the right to arms, the freedom of speech and the, the right of, and the Miranda rights, which are the rights of the
5. The power of judicial of the US Supreme Court is seen by some as a form of judicial, because the nine justices can change democratically enacted law.

Translate into Croatian

1. Both levels of government in the US have the power to LEVY taxes. Powers which are shared by both levels of government are referred to as CONCURRENT powers.
2. According to the Tenth Amendment, all powers not DELEGATED to the federal government are RESERVED for the states, which can pass, ENFORCE and INTERPRET laws, as long as they don't VIOLATE the Constitution.
3. A US president can be removed from OFFICE by IMPEACHMENT.
4. The Bill of Rights lists civil rights and freedoms such as the right to BEAR arms, the freedom of speech and the PRESS, the right of ASSEMBLY, and the Miranda rights, which are the rights of the ACCUSED.
5. The power of judicial REVIEW of the US Supreme Court is seen by some as a form of judicial ACTIVISM, because the nine justices can change democratically enacted law.

Suggested translations

1. Obje razine vlasti u SAD-u imaju ovlast da ubiru porez. Ovlaсти koje dijele obje razine vlasti nazivaju se zajedničke ovlasti.
2. Prema desetom amandmanu, sve ovlasti koje nisu prenesene na saveznu vlast zadržavaju države, koje mogu donositi, provoditi i tumačiti zakone, pod uvjetom da isti nisu protivni Ustavu.
3. Predsjednik SAD-a može se razriješiti dužnosti postupkom opoziva.
4. Povelja o pravima navodi prava i slobode kao što su pravo na nošenje oružja, sloboda govora i tiska, pravo okupljanja i tzv. prava Miranda, odnosno prava optuženika.
5. Ovlaст sudske kontrole zakonitosti Vrhovnog suda SAD-a neki smatraju oblikom sudačkog aktivizma jer svega devetoro sudaca mogu mijenjati zakone donesene u demokratskom postupku.

The Legislative Branch

- ▶ Compare the composition and powers of the British Parliament and US Congress. Think of the **similarities** and **differences**!

BRITISH PARLIAMENT	US CONGRESS

The Legislative

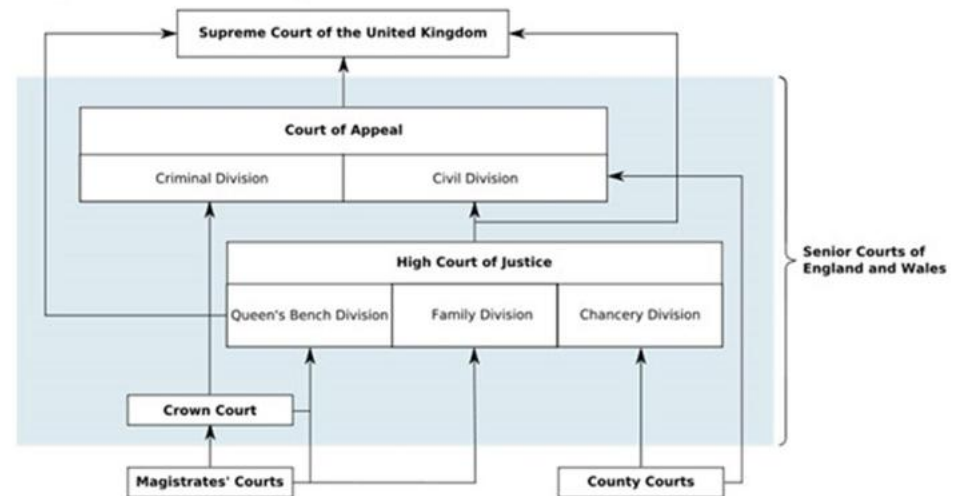
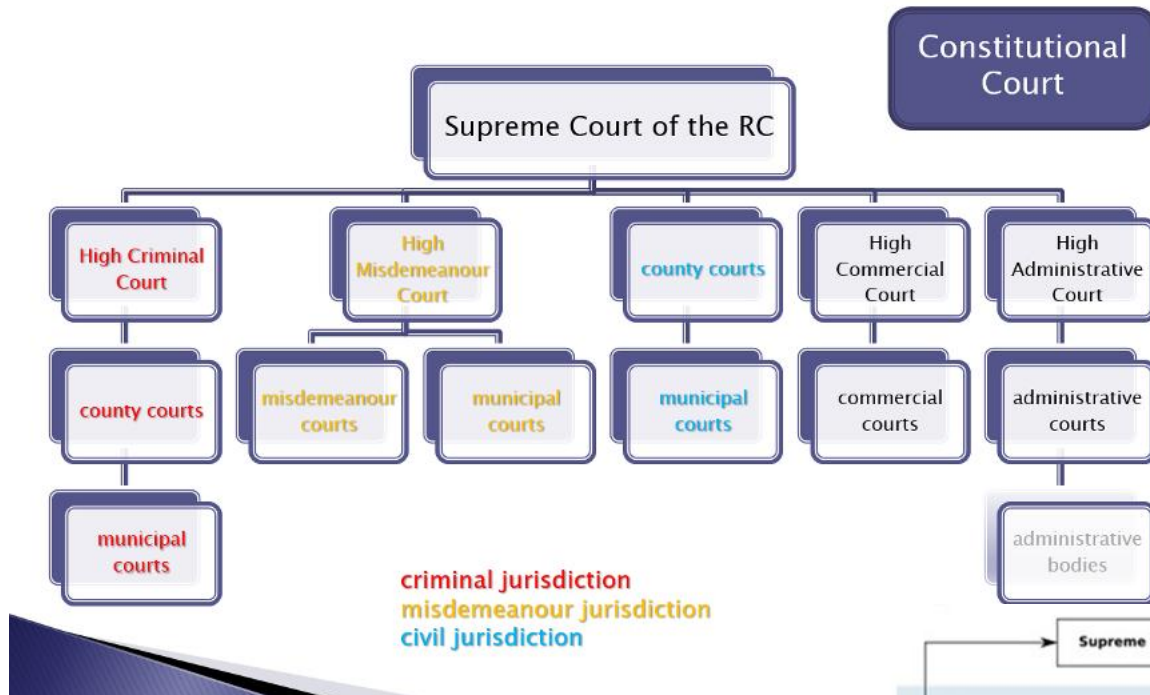
BRITISH PARLIAMENT

- bicameral
- lower house – elected, 1 MP per constituency
- upper house – appointed by the monarch, life members
- lower house – tax and budgetary powers
- both houses – must agree on bills
- lower house has the last say
- monarch's role only a formality

US CONGRESS

- bicameral
- lower house – elected, proportional representation of states
- upper house – elected, equal representation of states
- lower house – tax and budgetary powers
- both houses – must agree on bills
- President has the last say
- President may veto bill
- President's vetos can be overridden

Discuss similarities and differences between English and Croatian courts



The Supreme Court

- ▶ Compare the jurisdiction of the Supreme Courts of the UK and the USA

UNITED KINGDOM	USA

The Supreme Court

UNITED KINGDOM	USA
– third or higher instance – civil and criminal cases – chooses only cases that it wants to hear – issues of statutory interpretation – cannot abolish any statutory provisions – makes binding interpretation of legislation – 12 judges	– third or higher instance – civil and criminal cases – some original jurisdiction – chooses only cases that it wants to hear – issues of interpretation of the constitution – can abolish state and federal laws if it finds them to be contrary to the Constitution – 9 judges

Thank you for your attention!

